



CHAPTER lxxiii.

An Act to empower the mayor aldermen and citizens of the city of Gloucester in the county of the city of Gloucester to provide and work trolley vehicles and omnibuses to increase certain market and fair tolls and charges and for other purposes. A.D. 1928.
[3rd August 1928.]

WHEREAS the city of Gloucester in the county of the city of Gloucester (in this Act called "the city") is under the management and local government of the mayor aldermen and citizens of the city (in this Act called "the Corporation") :

And whereas under the powers of the Gloucester Corporation Light Railways Order 1903 the Corporation are the owners of and are working a system of light railways within the city and it is expedient to empower them to provide and work vehicles adapted for use upon roads without rails and moved by electrical power transmitted thereto from some external source (in this Act called "trolley vehicles") along the routes described in this Act along some of which routes or some part thereof light railways have been constructed and to confer upon the Corporation all necessary and convenient powers in regard thereto and to empower the Minister of Transport at any time hereafter to authorise the working and use of trolley vehicles by the Corporation on other roads within the area referred to in this Act :

And whereas it is expedient to confer powers upon the Corporation for the running of omnibuses :

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And whereas it is expedient to authorise the abandonment removal or discontinuance of any of the light railways of the Corporation when trolley vehicles or omnibuses have been provided and are being worked along the roads in which any such light railways have been constructed :

And whereas it is expedient to make further provision with regard to the finances of the Corporation and the application of revenue derived from their several undertakings :

And whereas the Corporation are the owners of markets and fairs in the city and certain of the tolls and charges which they are authorised to demand and take in respect thereof are inadequate and it is expedient to authorise the Corporation to demand and take the increased tolls and charges set forth in this Act :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows :—

	£
For the provision of trolley vehicles - - -	6,000
For the provision and adaptation of electrical equipment and the construction of other works necessary for working trolley vehicles - - - - -	3,000
For the reconstruction of the roads upon which the light railways to be removed or discontinued under the provisions of this Act are situate - - - - -	2,560
For the adaptation of buildings for the purposes of the trolley vehicles and omnibuses of the Corporation - - -	500
For the provision of omnibuses - - - - -	3,500

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

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May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

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PRELIMINARY.

1. This Act may be cited as the Gloucester Corporation Act 1928. Short title.

2. The Lands Clauses Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act but with the following exceptions (namely):— Incorporation of Acts.

(a) The provisions of the Lands Clauses Consolidation Act 1845 with respect to the purchase and taking of lands otherwise than by agreement;

(b) Section 127 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands).

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts 1875 to 1925 have the same respective meanings unless there be something in the subject or context repugnant to such construction. And in this Act unless the subject or context otherwise requires— Interpretation.

“The Corporation” means the mayor aldermen and citizens of the city of Gloucester in the county of the city of Gloucester;

“The city” means the city of Gloucester;

“The council” means the council of the city;

“The town clerk” and “the treasurer” mean respectively the town clerk and the treasurer of the city and respectively include any person duly authorised to discharge temporarily the duties of those offices;

“The general rate fund” and “the general rate” mean respectively the general rate fund and the general rate of the city or until the date when the first new valuation list made under Part II of the Rating and Valuation Act 1925 comes

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into force in the city the city fund and the city rate of the city ;

“ Trolley vehicle ” means a mechanically propelled vehicle adapted for use upon roads without rails and moved by electrical power transmitted thereto from some external source ;

“ Trolley vehicle routes ” means the routes upon which the Corporation are by this Act authorised to work and use trolley vehicles ;

“ Omnibus ” means any stage carriage moved by animal power or by mechanical power (including in that expression steam electrical and every other motive power not being animal power) obtained from some internal source ;

“ The light railway undertaking ” “ the trolley vehicle undertaking ” “ the omnibus undertaking ” and “ the electricity undertaking ” mean respectively the light railway undertaking the trolley vehicle undertaking the omnibus undertaking and the electricity undertaking for the time being of the Corporation ;

“ Apparatus ” includes standards brackets conductors mains cables wires posts poles and any other apparatus and equipment for the purpose of working trolley vehicles ;

“ Road authority ” means with reference to any road or part of a road over which any proposed trolley vehicle or omnibus service will pass the authority company or person charged with or liable to contribute to the maintenance of such road or part of a road ;

“ Statutory borrowing power ” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any

Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed; A.D. 1928.
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“ Statutory security ” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 (Definitions) of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation;

“ Revenues of the Corporation ” includes the revenues of the Corporation from time to time arising from any land undertakings or other property for the time being of the Corporation and the rates or contributions leviable by or on the order or precept of the Corporation;

“ The Act of 1874 ” “ the Act of 1894 ” “ the Order of 1903 ” and “ the Act of 1911 ” mean respectively the City of Gloucester Extension and Improvement Act 1874 the Gloucester Corporation Act 1894 the Gloucester Corporation Light Railways Order 1903 and the Gloucester Corporation Act 1911.

TROLLEY VEHICLES OMNIBUSES AND LIGHT RAILWAYS.

4.—(1) The Corporation may provide maintain and equip (but shall not manufacture) trolley vehicles and may work the same upon all or any of the following trolley vehicle routes in the city (that is to say):— Power to use trolley vehicles.

Route No. 1 Commencing in Stroud Road at its junction with Reservoir Road passing thence along Stroud Road to its junction with Park End Road thence along that road to its junction with Park Road thence along that road to its junction with Barton Street and thence along that road to and terminating at its junction with Clarence Street;

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Route No. 2 Commencing in Clarence Street at its junction with Barton Street passing thence along Clarence Street to its junction with Market Parade thence along that road to its junction with Station Road thence along that road to its junction with Barton Street and thence across that road to and terminating at its junction with Park Road;

and with the consent of the Minister of Transport along any other street or road in the city which the Corporation think it necessary or convenient to use for the purpose of providing a turning point or of connecting trolley vehicle routes or of obtaining access thereto from any depot garage building or work of the Corporation.

(2) Before equipping any trolley vehicle route to include a turning point or before arranging for a new turning point on any route the Corporation shall submit plans of the turning point to the Minister of Transport for approval.

(3) No turning point shall be fixed upon any road or street belonging to or maintained by a railway company without the consent in writing of such company which consent shall not be unreasonably withheld. If any difference shall arise between the Corporation and any railway company under this subsection such difference shall be determined in accordance with the provisions of subsection (11) of the section of this Act of which the marginal note is "For protection of London Midland and Scottish Railway Company and Great Western Railway Company."

As to repair
of roads
where rail-
ways are
laid.

5. On and from the date upon which and so long as a service of trolley vehicles is provided by the Corporation in lieu of a light railway service upon the route of any of the light railways of the Corporation the revenue of the light railway undertaking shall (to such extent as the Corporation may from time to time by resolution determine) cease to be charged with any expenses incurred by the Corporation upon or in connection with the maintenance and repair of roads along the route or routes upon which such service of trolley vehicles is provided under any statutory enactment relating to that undertaking but nothing in this subsection shall relieve the Corporation of any liability attaching to them in respect of such maintenance and repair.

6.—(1) The Corporation may in under or over the surface of the streets or roads along or adjoining those along which they are authorised to work trolley vehicles or in which it may be necessary so to do in order to connect the apparatus and equipment for working such vehicles with any generating station place erect and maintain all necessary and proper standards brackets conductors mains cables wires posts poles and any other necessary or convenient apparatus and equipment for the purpose of working the trolley vehicles by electrical power and may for that purpose subject to such of the provisions of Part II of the Tramways Act 1870 as are incorporated in this Act and to the provisions of this Act open and break up any such street or road and any sewers drains water or gas pipes tubes wires telephonic and telegraphic apparatus therein or thereunder and may supply electrical energy for the purpose of working the trolley vehicles :

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As to electrical works.

Provided that no post or other apparatus shall be erected on the carriageway except with the consent of the Minister of Transport.

(2) Nothing in this section shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electricity (Supply) Acts 1882 to 1926 to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of that section.

(3) The Corporation may also adapt and use for the purpose of working trolley vehicles any apparatus and equipment already provided by them for working light railways.

(4) In this section the expression “ generating station ” has the meaning assigned to it by section 25 of the Electric Lighting Act 1909.

7.—(1) It shall be lawful for the Postmaster-General in any street or public road or part of a street or public road in which he is authorised to place a telegraph to use for the support of such telegraph any posts and standards (with the brackets connected therewith) erected or used in any such street or public road by the Corporation in connection with the trolley vehicles and light railways of the Corporation and to lengthen adapt alter and replace such posts standards and brackets for the

Use of
posts by
Postmaster-
General.

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A.D. 1928. — purpose of supporting any telegraph and from time to time to alter any telegraph so supported subject to the following conditions :—

- (a) In placing maintaining or altering such telegraph no obstruction shall be caused to the traffic along or the working or user of the trolley vehicle routes or light railways;
- (b) The Postmaster-General shall give to the Corporation not less than twenty-eight days' notice in writing of his intention to exercise any of the powers of this section and shall in such notice specify the streets or public roads or parts of streets or public roads along which it is proposed to exercise such powers and the manner in which it is proposed to use the posts standards and brackets and also the maximum strain and the nature and direction of such strain Any difference as to any matter referred to in such notice shall be determined as hereinafter provided;
- (c) Unless otherwise agreed between the Postmaster-General and the Corporation the Postmaster-General shall pay the expense of lengthening adapting altering or replacing under the provisions of this section any post standard or bracket and the expenses of providing and maintaining any appliances or making any alteration rendered necessary in consequence of the exercise of the powers of this section for the protection of the public or the unobstructed working or user of the trolley vehicles or light railways or to prevent injurious affection of the Postmaster-General's telegraphs or any telegraphic or telephonic line or electrical apparatus of the Corporation or by any regulations which may from time to time be made by the Minister of Transport arising through the exercise by the Postmaster-General of the powers conferred by this section;
- (d) Unless otherwise agreed or in case of difference determined as hereinafter provided all telegraphs shall be attached to the posts standards or brackets below the level of the trolley wires and on the side of such posts or standards farthest

from the trolley wires Any difference as to the conditions of attachment shall be determined as hereinafter provided; A.D. 1928.
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- (e) Unless otherwise agreed no telegraph shall be attached to any post or standard placed in or near the centre of any street or public road;
- (f) The Postmaster-General shall cause all attachments to posts standards or brackets used by him under the powers of this section to be from time to time inspected so as to satisfy himself that the said attachments are in a proper condition and state of repair;
- (g) The Postmaster-General shall make good to the Corporation and shall indemnify them against any loss damage or expense which may be incurred by them through or in consequence of the exercise by the Postmaster-General of the powers conferred upon him by this section unless such loss damage or expense be caused by or arise from gross negligence on the part of the Corporation their officers or servants;
- (h) The Postmaster-General shall make such reasonable contribution to the original cost of providing and placing any post standard or bracket used by him and also to the annual cost of the maintenance and renewal of any such post standard or bracket as having regard to the respective interests of the Corporation and the Postmaster-General in the use of the post standard or bracket and to all the circumstances of each case may be agreed upon between the Postmaster-General and the Corporation or failing agreement determined as hereinafter provided;
- (i) The Corporation shall not be liable for any interference with or damage or injury to the telegraphs of the Postmaster-General arising through the exercise by the Postmaster-General of the powers conferred by this section and caused by the maintaining and working of the trolley vehicle routes or the light railways or by any accident arising thereon or by the authorised use by the Corporation of electrical

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energy unless such interference damage or injury be caused by gross negligence on the part of the Corporation their officers or servants;

- (j) If it shall become necessary or expedient to alter the position of or remove any post standard or bracket the Postmaster-General shall upon receiving twenty-eight days' notice thereof at his own expense alter or remove the telegraph supported thereby or at his option retain the post standard or bracket and pay the Corporation the value of the same. Provided that if the Corporation or the body having the control of the street or public road object to the retention of the post standard or bracket by the Postmaster-General a difference shall be deemed to have arisen and shall be determined as hereinafter provided.

(2) Nothing in this section contained shall prevent the Corporation from using their posts standards or brackets for the support of any of their electric wires and apparatus whether in connection with their trolley vehicles light railways or other municipal undertakings or shall take away any existing right of the Corporation of permitting the use by any company or person of their posts standards or brackets in connection with the lighting of the streets or otherwise. Provided that any difference between the Postmaster-General and such company or person in relation to the use of the posts standards or brackets by the Postmaster-General and such company or person respectively shall be determined as hereinafter provided.

(3) All differences arising under this section shall be determined in manner provided by sections 4 and 5 of the Telegraph Act 1878 for the settlement of differences relating to a street or public road.

(4) In this section—

The expression "the Corporation" includes their lessees;

The expression "telegraph" has the same meaning as in the Telegraph Act 1869;

Other expressions have the same meaning as in the Telegraph Act 1878.

8. Subject to the provisions of this Act the Corporation shall have the exclusive right of using any apparatus provided erected or maintained by them for the purpose of working the trolley vehicles and any person (except by agreement with the Corporation) using the said apparatus shall for every offence be liable to a penalty not exceeding twenty pounds.

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Corporation
to have exclu-
sive right of
using appara-
tus for work-
ing trolley
vehicles.

9.—(1) The trolley vehicles authorised by this Act shall not be deemed to be light locomotives within the meaning of the Locomotives on Highways Act 1896 nor shall they be deemed to be motor cars within the meaning of any provisions of the Motor Car Act 1903 (except subsection (1) of section 1 and the provisions necessary for enforcing that subsection section 6 and the provisions as amended by the Roads Act 1920 relating to the licensing and licences of drivers) and subject to those exceptions neither the Motor Car Acts 1896 and 1903 nor any byelaws or regulations made thereunder nor the enactments mentioned in the schedule to the Locomotives on Highways Act 1896 nor the Locomotives Act 1898 shall apply to the said trolley vehicles.

Vehicles
not to be
deemed
light loco-
motives or
motor cars.

(2) The trolley vehicles authorised by this Act shall not be deemed to be omnibuses within the meaning of the Town Police Clauses Act 1889.

10. Nothing in this Act shall in any way affect the duties of excise now payable by law on licences to be taken out for trolley vehicles authorised by this Act as hackney carriages.

Licence
duties on
trolley
vehicles.

11.—(1) The trolley vehicles and the electrical equipment thereof used under the authority of this Act shall be of such form construction weight and dimensions as the Minister of Transport may approve and no trolley vehicle shall be used by the Corporation which does not comply with the requirements of the Minister of Transport.

Approval of
vehicles by
Minister of
Transport.

(2) Before applying to the Minister of Transport for his approval of the weight of any trolley vehicle to be used upon any road which crosses a bridge belonging to or repairable by a railway company the Corporation shall give to such railway company notice of the weight of the trolley vehicle proposed to be used by them upon such road and the Minister of Transport shall consider and determine after such inquiry as he may think fit any

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A.D. 1928. — objections which may be submitted by the railway company to him on the ground that the strength of such bridge is insufficient to carry trolley vehicles of such weight. Provided that such objections shall be forwarded by such railway company to the Corporation at the same time as they are submitted to the Minister of Transport.

Inspection
by Minis-
ter of Trans-
port.

12. No trolley vehicle route shall be opened for public traffic until it has been inspected and certified to be fit for traffic by an officer appointed by the Minister of Transport.

Application
of certain
provisions of
Tramways
Act 1870
to trolley
vehicles.

13.—(1) The following provisions of the Tramways Act 1870 (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act and shall apply to the trolley vehicles authorised by this Act and such provisions shall be read and have effect as if the works to be constructed in the streets or roads for moving the trolley vehicles by electrical power were tramways and as if the said trolley vehicles were carriages used on tramways :—

- Part II (Relating to the construction of tramways) except sections 25 28 and 29;
- Section 46 (Byelaws by local authority);
- Section 47 (Penalties may be imposed in bye-laws);
- Section 48 (Power to local authority to license drivers conductors &c.);
- Section 49 (Penalty for obstruction of promoters in laying out tramway);
- Section 51 (Penalty on passengers practising frauds on the promoters);
- Section 53 (Penalty for bringing dangerous goods on the tramway); and
- Section 55 (Promoters or lessees to be responsible for all damages).

(2) Nothing in this section shall be deemed to exclude a trolley vehicle from the provisions of section 78 of the Highway Act 1835 as to the side of the road on which any wagon cart or other carriage is to be kept.

14.—(1) The following provisions of the Order of 1903 shall subject as hereinafter provided extend and apply to the trolley vehicles and the trolley vehicle undertaking as authorised by this Act or as authorised within or outside the city by any Provisional Order made under the powers of the section of this Act of which the marginal note is “Minister of Transport may authorise new routes” as if those provisions were with all necessary modifications re-enacted in this Act (namely):—

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 Application
 of provisions
 of Order of
 1903.

- Section 6 (Power to generate electricity);
- Section 9 (Right of user only of road);
- Section 10 (Reservation of right of public to use roads);
- Section 11 (Reservation of powers to widen roads &c.);
- Section 14 (Persons under disability may grant easements &c.);
- Section 20 (Application of materials excavated from roads);
- Section 44 (Service of passenger cars);
- Section 46 (Saving for power to regulate traffic on roads);
- Section 48 (Temporary railways may be made where necessary);
- Section 50 (Power to enter into agreements with respect to traffic &c.);
- Section 52 (Board of Trade regulations);
- Section 53 (Special provisions as to use of electric power as motive power);
- Section 56 (For the protection of the Postmaster-General) as amended by this Act;
- Section 66 (Railway to be removed in certain cases):

Provided that in the application of such provisions the same shall be read and have effect as if the apparatus and equipment for working the trolley vehicles and the trolley vehicle routes (together or separately as the context may require) were “the railway” within the meaning of the Order of 1903 and as if trolley vehicles were engines or carriages used on such railway and as if the undertaking authorised by and the purposes of the Order of 1903 included the trolley vehicle undertaking.

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(2) In the application of the above-mentioned provisions any matter or thing to be determined by arbitration shall be so determined under and subject to the provisions of the Light Railways Act 1912.

Amendment
of section 56
(b) (4) of
Order of
1903.

15. Subsection (b) (4) of section 56 (For the protection of the Postmaster-General) of the Order of 1903 shall be read and have effect as if the words "generated" or used by or supplied to the Corporation for the purposes of this Order enter any of the Corporation's works" were inserted in that subsection in substitution for the words "generated for the purposes of this Order at any works of the Corporation enter thereon."

Service for
labouring
classes.

16.—(1) The Corporation at all times after the opening of the trolley vehicle system for public traffic shall and they are hereby required to run a proper and sufficient service of trolley vehicles for artisans mechanics and daily labourers each way every morning and every evening (Sundays Christmas Day Good Friday and bank holidays always excepted) at such hours not being later than eight in the morning or earlier than five in the evening respectively as may be most convenient for such workmen going to and returning from their work at fares not exceeding one penny for every mile or fraction of that distance On Saturdays the Corporation in lieu of running such cars after five o'clock in the evening shall run the same at such hours between noon and two o'clock in the afternoon as may be most convenient for the said purposes.

(2) If complaint is made to the Minister of Transport that such proper and sufficient service is not provided the Minister after considering the circumstances of the locality may by order direct the Corporation to provide such service as may appear to him to be reasonable.

(3) The Corporation shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with any order under this section.

(4) The provisions of this section shall apply mutatis mutandis to any portion of any service of omnibuses provided under the powers of this Act along any light railway route authorised by the Order of 1903 in substitution for the service of light railway carriages thereon.

17. The following provisions for the protection of the London Midland and Scottish Railway Company and the Great Western Railway Company (each of which are in this section jointly and severally referred to as "the company") shall unless otherwise agreed in writing between the Corporation and the company apply and have effect in relation to the exercise by the Corporation of the powers of this Act with regard to trolley vehicles (that is to say):—

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For protection of
London
Midland and
Scottish
Railway
Company
and Great
Western
Railway
Company.

- (1) In this section the word "apparatus" means standards brackets conductors mains cables wires posts poles and any other apparatus and equipment for the purpose of working trolley vehicles under or in pursuance of this Act:
- (2) The apparatus where the same shall be erected or placed upon across under or over any bridge or the approaches thereto or over any level crossing or other work belonging to or maintainable by the company or will otherwise affect the same shall be erected or placed and maintained so as not to affect injuriously the structure of any such bridge or approaches and according to plans and particulars to be previously submitted to and reasonably approved by the company Provided that if the company do not within twenty-eight days after such submission signify their disapproval of such plans and particulars they shall be deemed to have approved thereof All such apparatus shall be erected or placed under the superintendence (if the same be given) and to the reasonable satisfaction of the company The Corporation shall so construct maintain and use the apparatus as not to affect injuriously any such bridge approaches or other work and in the event of any injury being occasioned to such bridge approaches or work by the construction maintenance user or removal of the apparatus upon across under or over the same the company may make good the injury and may recover from the Corporation the reasonable expenses of so doing:
- (3) The Corporation shall on demand pay to the company the reasonable expense (if any) of watching the railway and property of the

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company which shall be necessary during and in consequence of the execution or repair by the Corporation under or in pursuance of this Act of any apparatus affecting any bridge or other work belonging to or maintainable by the company for preventing all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Corporation or their contractors or any person in the employ of either of them :

- (4) The Corporation shall not in any manner in the execution maintenance user or repair of any of the apparatus obstruct or interfere with the free uninterrupted and safe user of any railway or siding belonging to or maintainable by the company or any traffic thereon :
- (5) The Corporation shall be responsible for and make good to the company all losses damages and expenses which may be occasioned to the company or any of their works or property or to any works or property which they may be liable to maintain or to the traffic on their railways or to any company or person using the same by or by reason of the execution or failure of any of the apparatus or by or by reason of any act default or omission of the Corporation or of any person in their employ or of any of their contractors in connection with the apparatus or any part thereof and the Corporation shall effectually indemnify and hold harmless the company from all claims and demands upon or against them by reason of such execution or failure or of any such act default or omission :
- (6) If the company in the exercise of their existing powers shall hereafter require to widen lengthen strengthen reconstruct alter or repair any of their bridges approaches or other works under or upon which the apparatus is laid or to widen or alter any railway thereunder or thereover the Corporation shall afford to the company all reasonable and proper facilities for the purpose and if it shall be necessary for such purpose that the apparatus be taken up diverted or removed and if the company accordingly give to the

Corporation twenty-eight days' notice in writing (or in case of emergency such notice as may be reasonably practicable) requiring such taking up diversion or removal then the working or user of such part of the apparatus shall be stopped or delayed or such part of the apparatus shall be taken up diverted or removed as stated in such notice at the reasonable expense of the Corporation and under their superintendence (if they shall give such superintendence) but no such working or user shall be stopped or delayed for a longer period than may be absolutely necessary for effecting such purpose as aforesaid and such part of the apparatus shall be restored with all practicable dispatch and the company shall not be liable to pay compensation in respect of such stoppage delay or taking up diversion or removal :

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- (7) The Corporation shall from time to time pay to the company any additional expense which the company may reasonably incur in effecting such widening lengthening strengthening reconstructing altering or repairing as is mentioned in the last preceding subsection or in the maintenance of any bridge approach or other work of the company by reason of the existence or user of the works or apparatus :
- (8) If and when the company shall require to reconstruct widen lengthen alter repair or paint any bridge under which any electric wire of the Corporation has been placed under or in pursuance of this Act and if it shall be reasonably necessary for them so to do the Corporation shall in order to ensure the safety of the workmen employed in such reconstruction widening lengthening alteration repairing or painting cut off the electric current from the trolley wires under such bridge at such time as shall be agreed between the Corporation and the engineer of the company or failing agreement as shall be determined by arbitration under this section unless the Corporation shall have previously adopted some other means of protection to workmen which shall have been approved by the said engineer :

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(9) If having regard to the proposed position of any apparatus of the Corporation authorised by or in pursuance of this Act when considered in relation to the position of the works of the company at any point where any apparatus will be constructed over or under the railway or other works of the company it becomes necessary in order to avoid danger from the breaking or falling of wires that the electric telegraphic telephonic or signal wires or apparatus of the company shall be altered the company may execute any works reasonably necessary for such alteration and the reasonable expense of so doing shall be repaid to the company by the Corporation. Provided that notice of their intention to execute such works shall be given by the company to the Corporation:

(10) The Corporation shall not for the purposes of this Act make attachments to any bridge or other property of the company without the consent in writing of the engineer of the company which shall not be withheld unreasonably such attachments if allowed to be temporarily removed at any time when required by the said engineer in connection with the maintenance and reconstruction or alteration of any such bridge:

(11) If any difference shall arise between the Corporation and the company or their respective engineers with reference to the matters aforesaid such difference shall be referred to and determined by a single arbitrator to be agreed upon between the parties or failing agreement to be appointed on the application of either party after notice in writing to the other by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference and determination.

Minister of
Transport
may author-
ise new
routes.

18.—(1) (a) If at any time hereafter the Corporation desire to provide maintain equip and work trolley vehicles upon any road as defined by the Tramways Act 1870 (other than the streets and roads in this Act hereinbefore referred to) they may make application to the Minister

of Transport and the Minister of Transport is hereby empowered to make a Provisional Order authorising the working and use by the Corporation of trolley vehicles subject to such conditions and restrictions (if any) as he may think fit upon any road or roads to which such application relates and containing such incidental provisions as the said Minister may deem expedient and subject to the terms of the Provisional Order the provisions of this Act shall apply as if the working and use of trolley vehicles upon such road were authorised by this Act. A.D. 1928.

(b) The Minister of Transport shall not make any Provisional Order under this section relating to any road or part of a road not included within the red line shown on the map signed in triplicate by Ronald Craufurd Viscount Novar the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred of which map one copy has been deposited in the office of the Clerk of the Parliaments House of Lords one copy has been deposited in the Committee and Private Bill Office of the House of Commons and one copy has been deposited at the town clerk's office in the city nor shall he make any such Order relating to any road outside the city except with the consent of the local authority and (where the local authority is not the road authority) of the road authority of the district in which such road is situate but such consent or consents shall in no case be unreasonably withheld and any question arising as to whether any such consent is unreasonably withheld shall be determined by the said Minister.

(2) No such application shall be entertained by the Minister of Transport unless the Corporation shall—

(a) have published once in each of two successive weeks in the months of October or November notice of their intention to make such application in some newspaper or newspapers circulating in the area to which the application relates;

(b) have also published such notice once in the months of October or November in the London Gazette;

(c) have posted for fourteen consecutive days in the months of October or November in conspicuous positions in each of the roads to which such application relates a notice of their intention to make such application;

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A.D. 1928. — and each such notice shall state the time for and method of bringing before the Minister of Transport any objections to the grant of such application.

(3) The Minister of Transport may and he is hereby empowered to prescribe the procedure with respect to any application for a Provisional Order under this section.

(4) The Minister of Transport shall consider any such application and may if he thinks fit direct an inquiry to be held in relation thereto or may otherwise inquire as to the propriety of proceeding upon such application and he shall consider any objection to such application that may be lodged with him in accordance with the prescribed procedure and shall determine whether or not it is expedient and proper that the application be granted either with or without addition or modification or subject or not to any restriction or condition.

(5) In any case where it shall appear to the Minister of Transport expedient that the application be granted he may settle and make a Provisional Order authorising the same and shall as soon as conveniently may be thereafter procure a Bill to be introduced into either House of Parliament for an Act to confirm the Provisional Order which shall be set out at length in the schedule to the Bill and until confirmation with or without amendment by such Act of Parliament a Provisional Order under this Act shall not have any operation.

(6) If while any such Bill is pending in either House of Parliament a petition is presented against any Provisional Order comprised therein the Bill so far as it relates to the Order petitioned against may be referred to a Select Committee and the petitioner shall be allowed to appear and oppose as in the case of a Bill for a special Act.

(7) The Act of Parliament confirming a Provisional Order under this Act shall be deemed a public general Act.

(8) The making of a Provisional Order under this section shall be *prima facie* evidence that all the requirements of this section in respect of proceedings required to be taken previously to the making of such Provisional Order have been complied with.

(9) Any expenses incurred by the Minister of Transport in connection with the preparation and making of

any such Provisional Order and any expenses incurred by the Minister of Transport in connection with any inquiry under this section shall be paid by the Corporation. A.D. 1928.
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19. So soon as the Corporation open for public traffic a trolley vehicle or omnibus route along any street or road or part of a street or road in the surface of which any railway or part thereof authorised by the Order of 1903 is laid and have commenced to provide a service of trolley vehicles or omnibuses as the case may be on any such trolley vehicle or omnibus route the Corporation shall not be required to provide a service of carriages on such railway or part thereof and may remove the rails of such railway or part thereof from the surface of the street or road in which the same are laid and make good such surface. Discontin-
tinuance of
light
railways.

20.—(1) Subject to the provisions of this Act the Corporation may provide and maintain (but shall not manufacture) and may run omnibuses within the city and with the consent of the Minister of Transport and the local authority of the district along any route without the city but within the red line shown on the map referred to in the section of this Act of which the marginal note is “Minister of Transport may authorise new routes” Provided that the consent of a local authority shall not be unreasonably withheld and any question whether or not such consent has been unreasonably withheld shall be determined by the Minister of Transport. Power
to provide
and run
omnibuses.

(2) In the case of any application under the provisions of this section for the consent of the Minister of Transport the Corporation shall give notice in writing of their proposals to the road authority (where it is not also the local authority) and shall publish notice of such proposals in the London Gazette and in such other manner as the Minister of Transport shall direct stating the manner in which and the time within which any persons affected by such proposals may object thereto and if any objection shall be made by any such person or the consent of the local authority is withheld the Minister of Transport may direct an inquiry to be held under the provisions of section 20 of the Ministry of Transport Act 1919.

(3) Every omnibus moved by electrical power shall be so equipped and worked as to prevent any interference with telegraphic communication by means of any telegraphs of the Postmaster-General.

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(4) The provisions of section 51 (Penalty on passengers practising frauds on the promoters) and section 56 (Recovery of tolls penalties &c.) of the Tramways Act 1870 shall apply to and in relation to the omnibuses of the Corporation as if they were carriages used on tramways.

(5) The Corporation may make byelaws for regulating the travelling and for the prevention of nuisances in or upon such omnibuses or in or against any premises held by the Corporation in connection therewith.

Adaptation
of roads.

21.—(1) (a) Before the Corporation commence to run trolley vehicles or omnibuses over any road or part of a road outside the city it shall be determined by agreement between the Corporation and the road authority or failing agreement by the Minister of Transport whether it is necessary (in order to provide for the running under the powers of this Act of a trolley vehicle or an omnibus service over any such road or part of a road) to adapt alter or reconstruct such road or part of a road or to strengthen any county bridge or district bridge and if so what sum of money per mile of road so to be adapted altered or reconstructed or what sum of money in respect of any such bridge shall be payable by the Corporation to the road authority by way of contribution towards the cost incurred in such adaptation alteration reconstruction or strengthening.

(b) Within six months after the date upon which all questions to be agreed or determined in pursuance of paragraph (a) of this subsection have been so agreed or determined the Corporation shall give notice in writing to the road authority as to whether they intend to run trolley vehicles or omnibuses over the road or part of a road or bridge in question.

(c) If the Corporation give notice in writing to the road authority that they intend to run trolley vehicles or omnibuses over the road or part of a road or bridge in question and if it shall have been agreed or determined that the Corporation are to make any payment to the road authority under the provisions of paragraph (a) of this subsection the Corporation shall on receipt of any certificate which may from time to time be issued by the engineer in charge of the work of adaptation alteration or reconstruction of such road or part of a road or of

strengthening such bridge pay to the road authority such proportion of the total amount of the contribution agreed or determined to be payable by the Corporation as the amount so certified to have been expended upon such work bears to the total amount estimated to be expended by the road authority on such work. Provided that the aggregate amount to be so paid by the Corporation shall not exceed the amount of the contribution agreed or determined to be payable by them as aforesaid. A.D. 1928.

(d) Notwithstanding anything in this subsection the Corporation shall not be required to pay any sum in respect of any work towards or in respect of the adaptation alteration or reconstruction of any such road or part of a road or the strengthening of any bridge which is not executed within three years from the date on which the Corporation shall commence to run trolley vehicles or omnibuses over the road or part of a road to be adapted altered or reconstructed or over the bridge to be strengthened.

(e) Not more than one payment or (in the case of a payment by instalments in accordance with paragraph (c) of this subsection) one series of payments shall be made in respect of any such road or part of a road so adapted altered or reconstructed or of any such bridge so strengthened.

(f) For the purposes of this subsection the expression "county bridge" shall include every bridge maintainable by a county council and in respect of such bridge the county council shall be deemed to be the road authority and the expression "district bridge" shall include every bridge maintainable by a district council and in respect of such bridge the district council shall be deemed to be the road authority.

(2) Any payment made to a road authority under this section in respect of any main road retained by them under subsection (2) of section 11 of the Local Government Act 1888 or maintained by them under subsection (4) of that section shall be credited to the county council in ascertaining the amount payable by them under either of the said subsections of the Local Government Act 1888.

(3) If any such adaptation alteration reconstruction or strengthening as aforesaid shall involve an alteration of any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General

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A.D. 1928. — the enactments contained in section 7 of the Telegraph Act 1878 shall apply to any such alteration and the road authority shall be deemed to be "undertakers" within the meaning of the said Act.

(4) The road authority shall not under section 23 of the Highways and Locomotives (Amendment) Act 1878 as amended by section 12 of the Locomotives Act 1898 or otherwise make any claim against the Corporation in respect of extraordinary traffic by reason of the user of any highway by the trolley vehicles or omnibuses of the Corporation.

(5) An agreement under this section with respect to any main road maintained by a local authority at the expense of any county council shall not be made except with the concurrence of that county council.

(6) For the purpose of this section a railway company shall not be deemed to be a road authority.

As to
roads and
bridges of
railway
companies.

22. Nothing in this Act shall impose any obligation upon or enlarge any existing obligation of a railway company to strengthen adapt alter or reconstruct any bridge or road maintainable by them.

For pro-
tection of
Gloucester-
shire County
Council.

23. The following provisions for the protection of the county council of the administrative county of Gloucester (hereinafter in this section referred to as "the county council") shall unless otherwise agreed in writing between the Corporation and the county council apply and have effect (that is to say) :—

If in connection with the widening of any highway vested in or repairable by the county council or of any county bridge it shall be reasonably necessary to alter the position in or on any such highway or bridge of any post or standard used in connection with the trolley vehicles the Corporation shall at their own expense and with all reasonable dispatch after the widening shall have been carried out alter the position of any such post or standard to such reasonable and practicable extent having regard to the proper and efficient working of the trolley vehicles as may be agreed upon between the county council and the Corporation or determined in manner provided by this section :

Any difference which may arise under this section between the Corporation and the county council shall be determined by a single arbitrator to be agreed upon between the Corporation and the county council or failing agreement to be appointed on the application of either party by the Minister of Transport.

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24.—(1) Subject to the provisions of this section the Corporation may demand and take for passengers parcels and animals carried on the trolley vehicles or omnibuses of the Corporation fares and charges not exceeding such maximum fares and charges as may from time to time be approved by the Minister of Transport in connection with such trolley vehicles and omnibuses respectively. Any application for a revision of such maximum fares or charges may be made by the Corporation or by the local authority of the district in which such trolley vehicles or omnibuses as the case may be are run. Before approving any maximum fares or charges or any revision thereof under this section the Minister of Transport may direct an inquiry to be held.

Fares and charges &c. on trolley vehicles and omnibuses.

(2) Every passenger travelling upon the trolley vehicles or omnibuses of the Corporation may take with him his personal luggage not exceeding twenty-eight pounds in weight without any charge being made for the carriage thereof but all such luggage shall be carried by hand and at the responsibility of the passenger and shall not occupy any part of a seat required for a passenger nor be of a form or description to annoy or inconvenience other passengers.

(3) The Corporation may if they think fit convey on their trolley vehicles and omnibuses small parcels not exceeding fifty-six pounds in weight and dogs in the care of passengers the charge for any such dog to be a sum not exceeding the fare payable by a passenger but they shall not carry any other goods or animals on their trolley vehicles or omnibuses.

25.—(1) The powers of running omnibuses under the provisions of this Act on any road or part of a road outside the city may at the expiration of ten years from the date on which such running commences and at the expiration of any subsequent period of ten years

As to cesser of powers.

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A.D. 1928. be determined by the Minister of Transport on the application of the local authority of the district in which such road or part of a road is situate upon such terms as the said Minister may determine. A local authority shall not make an application to the Minister of Transport under the provisions of this section unless the local authority give to the Corporation one year's notice in writing of such application.

(2) Before issuing an order to determine the said powers the Minister of Transport shall hold a local inquiry at which opportunity shall be afforded to any person interested to object to the continuance or cesser of such powers.

Provision
in event
of certain
powers
not being
exercised
within
prescribed
period.

26. If the Corporation do not within three years from the giving of the consent of the Minister of Transport to the running by the Corporation of omnibuses on any route without the city provide a service of omnibuses on such route or having provided shall discontinue any such service the Minister of Transport may on the application of any local authority within whose district the route or any part of the route is situate and after considering any representation which may be made on behalf of the Corporation by order declare that unless a service of omnibuses be provided within such period as the Minister of Transport may by such order prescribe the powers of the Corporation under this Act in respect of the provision and running of omnibuses on such route or part of such route shall determine and if within the prescribed period such service be not provided as from the expiration of such period the powers of the Corporation under this Act in relation to the provision and running of omnibuses on such route or part of a route shall cease:

Provided that this section shall not apply or have effect in the event of the failure of the Corporation to provide a service of omnibuses on any route being due to strikes unforeseen accident or circumstances beyond the control of the Corporation.

Power for
Corporation
to suspend
traffic.

27. The Corporation may for the purpose of regulating and facilitating the traffic on market or fair days or for the execution of any works by the Corporation or during the time of any public meeting procession or demonstration or for any other purpose which the Corporation having regard to the good government of

the city or the safety of the public may deem necessary order that the working of the light railways of the Corporation or any part thereof or the running of trolley vehicles or omnibuses on any trolley vehicle or omnibus route of the Corporation or part thereof respectively shall be stopped delayed or suspended but so that such stoppage delay or suspension shall continue only so long as may reasonably be necessary for the purposes aforesaid or any of them and the Corporation shall not be liable to pay compensation for damages in respect thereof.

A.D. 1928.

28. The Corporation may at such times and in such manner as they think fit (but subject to the provisions of this Act and to any byelaws for the time being in force with respect to light railways or trolley vehicles) use the light railways or trolley vehicles of the Corporation for sanitary or road watering purposes and for the conveyance of scavenging stuffs road metal and other materials required for the works of the Corporation free of all rates and charges in respect of such use.

Use for
sanitary
purposes.

29. The Corporation may run through carriages along any of the routes of the light railways of the Corporation or any specified portion thereof and through trolley vehicles or omnibuses along any route on which the Corporation are for the time being authorised to run trolley vehicles or omnibuses and such carriages trolley vehicles and omnibuses shall be distinguished from other carriages trolley vehicles and omnibuses in such manner as may be directed by the Corporation and they may demand and take for every passenger by such carriages trolley vehicles and omnibuses a fare or charge not exceeding the maximum fare or charge authorised or chargeable for and in respect of the whole of such route or the whole of the portion thereof traversed by any such carriage trolley vehicle or omnibus Provided that during the running of such through carriages trolley vehicles or omnibuses the Corporation shall maintain a reasonably sufficient ordinary service of carriages trolley vehicles or omnibuses as the case may be.

Through
cars
vehicles and
omnibuses.

30. The Corporation may appoint the stations and places from which carriages on their light railways and their trolley vehicles and their omnibuses shall start or at which they may stop for the purpose of taking up or setting down passengers and may fix the time during

Corporation
may
appoint
stopping
and starting
places.

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A.D. 1928. — which such carriages vehicles and omnibuses shall be allowed to remain at any such place Any such appointment and fixing of time shall (as respects any station or place outside the city) be subject to the consent of the local authority of the district within which that station or place is appointed and (where the local authority is not the road authority) of the road authority in respect of any such appointment upon any road which the road authority is liable to maintain but such consent or consents shall not be unreasonably withheld and any question as to whether or not any such consent is unreasonably withheld shall be determined by the Minister of Transport.

Power
to reserve
carriages
trolley
vehicles or
omnibuses
for special
purposes.

31.—(1) Notwithstanding anything contained in this or any other Act or Order to the contrary the Corporation may on any occasion run and reserve carriages on any of the light railways of the Corporation and trolley vehicles or omnibuses on any route on which the Corporation are for the time being authorised to run trolley vehicles or omnibuses for any special purpose which the Corporation may consider necessary or desirable Provided that such special carriages trolley vehicles and omnibuses shall be distinguished from other carriages trolley vehicles and omnibuses in such manner as the Corporation may direct and that during the running of such special carriages trolley vehicles or omnibuses the Corporation shall maintain a reasonably sufficient ordinary service of carriages trolley vehicles or omnibuses as the case may be.

(2) The Corporation may make byelaws and regulations for prohibiting the use of any such carriages trolley vehicles or omnibuses by any persons other than those for whose conveyance the same are reserved.

(3) The restrictions contained in this or any other Act or Order of the Corporation as to fares rates or charges for passengers shall not extend to any special carriages run upon the light railways of the Corporation or trolley vehicles or omnibuses run for such special services as aforesaid and in respect thereof the Corporation may demand and take such fares rates or charges as they shall think fit.

Shelters or
waiting-
rooms.

32. The Corporation may erect and maintain sheds shelters or waiting-rooms for the accommodation of

passengers on any routes of the Corporation's light railways or on any trolley vehicle or omnibus routes established under the authority of this Act and may (with the consent of the local and road authority on any light railway trolley vehicle or omnibus route outside the city) use for that purpose portions of the public streets or roads due regard being had to the convenience of the general traffic along any such street or road. A.D. 1928.

33. The Corporation may provide cloak-rooms and rooms or sheds for the storage of bicycles tricycles and other vehicles at any dépôt or building used by them in connection with their light railway trolley vehicle or omnibus undertakings and at any places on any light railway trolley vehicle or omnibus route of the Corporation and the Corporation may make charges for the use of such cloak-rooms rooms and sheds and for the deposit of articles and things and bicycles tricycles and other vehicles therein but shall not use for the purpose any part of the highway outside the city without the consent of the road authority. Cloak-rooms &c.

34. The following provisions for the protection and benefit of railway companies shall apply and have effect except so far as may be otherwise agreed in writing between the Corporation and the railway company:— For further protection of railway companies.

Notwithstanding anything contained in this Act no shed shelter waiting-room cloak-room or room shall be erected maintained or provided or starting or stopping place appointed so as to cause interference with the access to or exit from any station belonging to any railway company or any dépôt belonging to them and adjacent to their railway nor shall any such shed shelter waiting-room cloak-room or room be erected maintained or provided on any bridge carrying any street or road over the railways or canal of any railway company.

35. Any property found in any light railway carriage trolley vehicle or omnibus of the Corporation or in any cloak-room shed shelter or waiting-room in connection with their light railway trolley vehicle or omnibus undertakings shall forthwith be handed to the conductor of the carriage vehicle or omnibus or be taken to a place to be appointed for the purpose by the Lost property.

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A.D. 1928. Corporation and if the same be not claimed within six months after the finding thereof it may be sold as unclaimed property by public auction after notice by advertisement in one or more local newspapers once in each of two successive weeks and the proceeds thereof shall be paid to the general rate fund and credited to the revenue account of the light railway trolley vehicle or omnibus undertaking as the case may require.

Attachment
of brackets
to buildings.

36. The Corporation may with the consent of the owner of any building attach to that building such brackets wires and apparatus as may be required or expedient for the working of their trolley vehicles by mechanical power:

Provided that—

- (a) Where in the opinion of the Corporation any consent under this section is unreasonably refused they may appeal to a petty sessional court who shall have power having regard to the character of the building and to the other circumstances of the case to allow the attachment subject to such terms as to compensation or rent and otherwise as they may think reasonable or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid;
- (b) Any consent of an owner and any order of a petty sessional court under this section shall not have effect after that owner ceases to be in possession of the building but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Corporation notice in writing requiring the attachments to be removed. Where such notice is given the preceding provisions of this section shall apply and the petty sessional court shall have the same powers as under proviso (a);
- (c) The owner may require the Corporation temporarily to remove the attachments where necessary during any reconstruction or repair of the building.

For the purposes of this section any occupier of a building whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rack rent shall be deemed to be the owner. A.D. 1928.

37.—(1) The Corporation may attach to any lamp-post pole standard or other similar erection erected on or in the highway on or near to the route of any of the light railways trolley vehicles or omnibuses of the Corporation signs or directions indicating the position of stopping places for light railway carriages trolley vehicles and omnibuses. Provided that in cases where the Corporation are not the owners of such lamp-post pole standard or similar erection they shall give notice in writing of their intention to attach thereto any such sign or direction and shall make compensation to the owner for any damage or injury occasioned to such lamp-post pole standard or similar erection by such attachment and the Corporation shall indemnify the said owner against any claim for damage occasioned to any person or property by or by reason of such attachment. Attachment of signs indicating stopping places to lamp-posts &c.

(2) Nothing in this section shall be deemed to require the said owner to retain any such lamp-post pole standard or similar erection when no longer required for his purposes.

(3) The Corporation shall not attach any such sign or direction to any pole post or standard belonging to the Postmaster-General except with his consent in writing.

38. The Corporation shall not under the powers of the sections of this Act of which the marginal notes are "Attachment of brackets to buildings" and "Attachment of signs indicating stopping places to lamp-posts &c." attach any brackets wires or apparatus or signs or directions to any building belonging to any railway company without the consent of such company such consent not to be unreasonably withheld. Any question whether such consent be unreasonably withheld or not shall be referred to and determined by a single arbitrator to be agreed upon between the parties or failing agreement to be appointed on the application of either party after notice to the other by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such reference or determination. For protection of railway companies in respect of two preceding sections.

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Act, 1928.

A.D. 1928.

Penalty for
malicious
damage.

39. If any person wilfully and unlawfully does or causes to be done with respect to any apparatus used for or in connection with the working of the light railways or trolley vehicles of the Corporation anything which is calculated to obstruct or interfere with the working of such light railways or trolley vehicles or to cause injury to any person he shall be liable to a penalty not exceeding twenty pounds.

Appropriation and
acquisition
by agree-
ment of
lands and
buildings.

40.—(1) The Corporation may—

(a) with the consent of the Minister of Health appropriate and use for the purposes of their trolley vehicle and omnibus undertakings any lands or buildings vested in them being part of their corporate estates; and

(b) purchase take on lease or acquire by agreement and may hold for the purposes of their trolley vehicle and omnibus undertakings any lands and buildings and may sell or dispose of any such lands and buildings not required for such purposes.

(2) The Corporation may on any such lands erect or construct and hold trolley vehicle omnibus carriage and motor houses sheds depôts yards wharves offices buildings sidings and works and may provide such plant appliances and conveniences as may be requisite or expedient for the establishment running equipment maintenance and repair of such trolley vehicles and omnibuses.

(3) The Corporation shall not create or permit any nuisance on any lands or buildings appropriated acquired erected or constructed and used by them under the provisions of this section.

(4) Nothing in this section contained shall release the Corporation or any person purchasing or acquiring any lands from them under this section from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which any such lands were or may hereafter be conveyed or leased to or otherwise acquired by the Corporation or any person from or through whom the Corporation may have derived or may hereafter derive title to the same but all such rents covenants restrictions reservations terms and conditions shall remain and be of as full force and effect and may be

recovered exercised enjoyed and enforced in like manner and to the same extent as if this Act had not been passed. A.D. 1928.
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(5) The Corporation shall not unless the Minister of Health otherwise directs sell lease exchange or otherwise dispose of any of the lands to which this section applies except at the best price or on the best terms which can be obtained for the same but a purchaser or lessee shall not be concerned to inquire whether the direction of the Minister of Health is necessary or has been obtained.

41. The Corporation shall apply any capital moneys received by them on the re-sale or exchange of or by leasing any lands acquired under the authority of this Act in or towards the extinguishment of any loan raised by them under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment provided by this Act except to such extent and upon such terms as may be approved by the Minister of Health. Proceeds of sale of surplus lands.

42. For the purpose of using mechanical power in connection with their light railways trolley vehicles or omnibuses the Corporation may acquire hold and exercise patent and other rights or licences relating to motive power or otherwise but not so as to acquire any exclusive right therein. Power to acquire patent rights.

43. The Corporation shall perform in respect of their trolley vehicles and omnibuses such services in regard to the conveyance of mails as are prescribed by the Conveyance of Mails Act 1893 in the case of a tramway to which that Act applies. Conveyance of mails.

44. The fares rates and charges authorised by this Act shall be paid to such persons and at such places upon or near to the trolley vehicles or omnibuses and in such manner and under such regulations as the Corporation may by byelaw made under this Act or by notice to be annexed to the lists of fares rates and charges appoint and all such fares rates and charges may be recovered as a civil debt in manner provided by the Summary Jurisdiction Acts. Payment of fares rates and charges.

45. Any byelaws and regulations made by the Corporation under the provisions contained in this Act shall be made subject and according to the provisions of the Tramways Act 1870 with respect to the making of byelaws. As to byelaws &c. under this Act.

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Accounts
to be
furnished to
Minister of
Transport.

46.—(1) The Corporation shall in every year within three months after the close of their financial year or such longer period as the Minister of Transport may allow furnish to the Minister of Transport a copy of the annual accounts of their light railway trolley vehicle and omnibus undertakings.

(2) Section 83 (Returns and accounts) of the Order of 1903 is hereby repealed.

FINANCIAL PROVISIONS.

Power to
borrow.

47.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and in order to secure the repayment of the said sums and the payment of interest thereon they may mortgage or charge the revenues of the Corporation and they shall pay off all moneys so borrowed within the respective periods (each of which is in certain of the provisions incorporated in this Act referred to as “the prescribed period”) mentioned in the third column of the said table (namely) :—

(1)	(2)	(3)
Purpose.	Amount.	Period of Repayment.
(a) For the provision of trolley vehicles	£ 6,000	Ten years from the date or dates of borrowing.
(b) For the provision and adaptation of electrical equipment and the construction of other works necessary for working trolley vehicles.	3,000	Twenty years from the date or dates of borrowing.
(c) For the reconstruction of the roads upon which the light railways to be removed or discontinued under this Act are situate.	2,560	Twenty years from the date or dates of borrowing.
(d) For the adaptation of buildings for the purposes of the trolley vehicles and omnibuses of the Corporation.	500	Thirty years from the date or dates of borrowing.
(e) For the provision of omnibuses	3,500	Eight years from the date or dates of borrowing.
(f) For the payment of the costs charges and expenses of this Act.	The sum requisite.	Five years from the passing of this Act.

(2) The Corporation may also borrow such further moneys as may be necessary for the purpose of providing a fund for working capital— A.D. 1928.
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(i) for the purposes of the light railway trolley vehicle and omnibus undertakings with the consent of the Minister of Transport;

(ii) for the purpose of the electricity undertaking with the consent of the Electricity Commissioners;

(iii) for the purpose of any undertaking of the Corporation other than the aforesaid undertakings with the consent of the Minister of Health.

(3) (a) The Corporation may also with the consent of the Minister of Transport borrow such further money as may be necessary for any of the purposes of the trolley vehicle and omnibus undertakings and with the consent of the Minister of Health such further money as may be necessary for any of the other purposes of this Act.

(b) Any money borrowed under this or the preceding subsection shall be repaid within such period as may be prescribed by the Minister or Commissioners with whose consent such money is borrowed and that period shall be the prescribed period for the purposes of this Act and the enactments incorporated therewith or applied thereby.

(c) In order to secure the repayment of any money borrowed under this or the preceding subsection and the payment of interest thereon the Corporation may mortgage or charge the revenues of the Corporation.

48. The Corporation may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debenture stock or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others Provided that the provisions of this Act relating to sinking funds shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 (Discharge of loan by sinking fund) and section 16 (Annual return as to sinking fund) of that Act. Mode of raising money.

[Ch. lxxiii.] *Gloucester Corporation* [18 & 19 GEO. 5.]
Act, 1928.

A.D. 1928.

—
Application
of financial
provisions
of Acts
of 1894 and
1911.

49. The following sections of the Act of 1894 and the Act of 1911 shall with the necessary modifications extend and apply to the exercise of the powers of this Act as if the same were re-enacted in this Act (that is to say):—

The Act of 1894—

Section 88 (Provisions of Public Health Act as to mortgages to apply);

Section 92 (Protection of lender from inquiry);

Section 93 (Application of moneys borrowed).

The Act of 1911—

Section 106 (Section 234 of Public Health Act not to apply);

Section 108 (Mode of payment off of money borrowed);

Section 109 (Sinking fund):

Provided that the said section 109 shall be read and have effect as if the words “three pounds ten shillings per centum per annum or such other rate as the Minister of Health may approve” were inserted in subsection (1) (b) of that section instead of the words “three pounds per centum per annum.”

Section 110 (Corporation not to regard trusts);

Section 117 (Audit of accounts).

Investment
of and
payments
into sinking
fund.

50. When under the provisions of this Act or of any other Act of Parliament or of any Order confirmed by or having the effect of an Act of Parliament whether passed confirmed or made before or after the passing of this Act the Corporation are empowered or required to form a sinking fund redemption fund or loans fund the following provisions shall have effect with respect to the appropriate yearly sums and to the accumulations thereof (if any) required to be set apart for or paid into such sinking fund redemption fund or loans fund for the purpose of providing for the repayment of moneys borrowed by the Corporation the accumulations of the said yearly sums shall be paid and provided out of the general rate fund and general rate and any interest dividends and proceeds arising from the investment of the said yearly sums and the accumulations thereof (including such annual sums and accumulations as have

been provided prior to the passing of this Act) shall be paid into and form part of the general rate fund. A.D. 1928.
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51.—(1) Notwithstanding anything contained in the Public Health Acts Amendment Act 1890 or in any other Act or Order on and after the thirty-first day of March nineteen hundred and twenty-nine the Corporation may (if they think fit) establish a fund to be called “the consolidated loans fund” to which shall be paid as and when they are received— Consolidated loans fund.

- (a) all moneys borrowed by the Corporation whether by issue of stock or other security together with any moneys borrowed without security in connection with the exercise of any statutory borrowing power;
- (b) all moneys of a capital nature received by the Corporation whether from the sale of capital assets or otherwise except such as are applied by the Corporation with due authority to another capital purpose;
- (c) the appropriate sums provided in each year out of other funds of the Corporation to comply with the terms and conditions as to repayment attaching to their several borrowing powers or otherwise provided for the repayment of debt; and
- (d) a sum or sums equal to the aggregate amount of all dividends and interest payable in each year on stock mortgages or other securities issued in exercise of any statutory borrowing power and remaining outstanding:

And there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys borrowed or received except such moneys as have been borrowed from the Public Works Loan Commissioners and of all sums provided by the Corporation as aforesaid before the date on which the consolidated loans fund is established.

(2) The moneys of the consolidated loans fund shall be used or applied by the Corporation—

- (a) in the redemption of stock or any other securities issued by the Corporation the purchase of stock for extinction or the repayment of any moneys borrowed by the Corporation;

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A.D. 1928.

(b) in the exercise of any statutory borrowing power by transfer of the required amount to the appropriate fund and account of the Corporation; and

(c) in the payment of dividends and interest on the stock mortgages or other securities issued in exercise of any statutory borrowing power and remaining outstanding:

And the moneys of the consolidated loans fund not used or applied in these ways may be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys of the consolidated loans fund including the accumulations arising from the investments thereof shall not except with the consent of the Minister of Health be used or applied otherwise than as provided in this subsection.

(3) Subject to any priority existing at the passing of this Act all stock of and loans to the Corporation and the dividends and interest thereon shall be charged indifferently on all the revenues of the Corporation and shall rank equally one with the other without any priority whatsoever.

(4) Save as in this section expressly provided all the obligations of the Corporation to the holders of stock or other securities of the Corporation shall continue in force.

(5) The powers conferred by this section shall not be put into operation by the Corporation except in accordance with a scheme to be approved by the said Minister and such scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund.

Interest on
mortgages
&c. held
jointly.

52. Where more persons than one are registered as joint holders of any mortgage annuity or stock of the Corporation any one of them may give an effectual receipt for any interest thereon unless notice to the contrary has been given to the Corporation or the treasurer by any other of them.

Receipt
in case of
persons not
sui juris.

53. If any moneys are payable to a mortgagee or stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Corporation.

54.—(1) The town clerk shall if and when he is requested by the Minister of Health so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Corporation under any statutory borrowing power.

A.D. 1928.

—
Return to
Minister of
Health with
respect to
repayment
of debt.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if so required by him be verified by statutory declaration of the treasurer or other the chief accounting officer of the Corporation and shall be transmitted within one month after the making of the request and in the event of his failing to make such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(3) If it appears to the Minister by such a return as aforesaid or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by any enactment relating to the statutory borrowing power or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the Corporation shall notify the Minister as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(4) Any provision of any enactment now in force in the city requiring an annual return to be made to the Minister with regard to the repayment of debt is hereby repealed.

55. Notwithstanding anything contained in any previous enactment the Corporation may use for the purpose of any statutory borrowing power exerciseable

Use of
moneys
forming

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—
part of
sinking
and other
funds.

by them any moneys forming part of but not for the time being required for the purposes of any fund accumulated for the redemption of debt or as a reserve renewals contingent superannuation or insurance or other similar fund (in this section referred to as "the lending fund") subject to the following conditions :—

- (1) The moneys so used shall be repaid to the lending fund within the period by the methods and out of the fund rate or revenue within by and out of which a loan raised under the statutory borrowing power would be repayable :

Provided that the Corporation shall repay to the lending fund the moneys so used or the balance thereof for the time being outstanding as the case may be as and when the same shall be required for the purposes of the lending fund and may if they so resolve repay the same at any time within the period aforesaid and in either case the repayment shall be made out of the fund rate or revenue aforesaid or out of moneys which would have been applicable to the repayment of a loan if raised under the statutory borrowing power :

- (2) Interest shall be paid to the lending fund on any moneys so used and for the time being not repaid at such rate per centum per annum as may be determined by the Corporation to be equal as nearly as may be to the rate of interest which would be payable on a loan raised on mortgage or by the issue of bonds under the statutory borrowing power and such interest shall be paid out of the fund rate or revenue which would be applicable to the payment of interest on a loan raised under the statutory borrowing power :

- (3) The statutory borrowing power shall be deemed to be exercised by such use as fully in all respects as if a loan of the same amount had been raised in exercise of the power and the provisions of any enactment as to re-borrowing of sums raised under the statutory borrowing power shall apply accordingly.

56. It shall not be obligatory on the Corporation to receive or register any transfer assignment certificate of death burial bankruptcy or marriage probate letters of administration or other document evidencing a transmission of any authorised security (except securities issued under the Local Loans Act 1875 and except securities to which regulations made under section 52 (Issue of stock) of the Public Health Acts Amendment Act 1890 apply) except upon the production to and temporary deposit with the town clerk of the security or the certificate thereof for the purpose of the endorsement thereon of a memorandum of such transmission or the issue of a new security or certificate thereof and in case of the issue of a new security or certificate for the purpose of cancellation of the security or certificate so deposited.

A.D. 1928.

Evidence
of transfer
or trans-
mission of
securities.

57. In calculating under subsection (2) of section 234 of the Public Health Act 1875 the amount which the Corporation may borrow the amount of any sinking fund or redemption fund accumulated for the purpose of providing for the repayment of loans contracted by the Corporation under the Sanitary Acts and the Public Health Act 1875 shall be deducted from the total debt of the Corporation under those Acts.

As to
section 234
of Public
Health Act
1875.

58. Notwithstanding anything contained in any previous enactment all money received by the Corporation on account of the revenue of the following undertakings (namely) :—

Application
of revenue
and pay-
ment of
expenses of
under-
takings.

- (1) the water undertaking;
- (2) the electricity undertaking;
- (3) the light railways undertaking;
- (4) the trolley vehicle undertaking;
- (5) the omnibus undertaking;
- (6) the markets undertaking;

including the income arising from the investment of any reserve fund under any such enactment shall be carried to and shall form part of the general rate fund and all payments and expenses made and incurred in respect of those undertakings shall be paid out of the general rate fund.

A.D. 1928.

—
Accounts.

59.—(1) The Corporation shall notwithstanding the provisions of any Act or Order to the contrary keep their accounts so as to distinguish capital from revenue and as to revenue so as to show under a separate heading or division in respect of each of the undertakings set out in the section of this Act of which the marginal note is "Application of revenue and payment of expenses of undertakings" (each of which is in this section separately referred to as "the undertaking") on the one side all receipts in respect of the undertaking including the income from any reserve fund authorised in connection with such undertaking and on the other side all payments and expenses in respect of the undertaking such payments and expenses being divided so as also to show in each case the amounts expended in respect of each of the following purposes (that is to say):—

- (a) The working and establishment expenses and cost of maintenance of the undertaking;
- (b) The interest on moneys borrowed by the Corporation for the purposes of or connected with the undertaking;
- (c) The requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of the undertaking;
- (d) All other expenses (if any) of the undertaking properly chargeable to revenue;
- (e) The amount (if any) paid to any reserve fund which the Corporation are from time to time authorised to maintain.

(2) The Corporation shall show in their accounts relating to any undertaking or purpose all items (including receipts and payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the undertaking or purpose.

(3) In all cases in which the Corporation keep separate accounts for separate purposes they shall so far as reasonably practicable apportion between those accounts or carry to any of them any receipts, credits, payments and liabilities which from time to time ought to be so apportioned or carried.

Reserve
funds.

60.—(1) The Corporation may (if they think fit) provide a reserve fund in respect of each of the undertakings set out in the section of this Act of which the

marginal note is "Application of revenue and payment of expenses of undertakings." A.D. 1928.

(2) The Corporation may set aside in any year for the purpose of such reserve fund such an amount as they may think reasonable and may invest the same and the resulting income thereof in statutory securities and may accumulate the same at compound interest until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Corporation in respect of the undertaking.

(3) Any reserve fund which has been formed for the purposes of any of the said undertakings and which is in existence at the passing of this Act shall be deemed to have been formed under this section.

(4) Any reserve fund formed under this section shall be applicable to answer any deficiency at any time happening in the income of the Corporation from the undertaking in respect of which it is formed or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of that undertaking or for payment of the cost of renewing improving or extending any part of the works forming part thereof or otherwise for the benefit of that undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

(5) Resort may be had to a reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum.

(6) Any provision of any enactment now in force in the city with reference to the provision of a reserve fund in respect of any of the undertakings referred to in the section of this Act the marginal note whereof is "Application of revenue and payment of expenses of undertakings" is hereby repealed.

61. Nothing contained in this Act shall be deemed to authorise the Corporation to apply or dispose of the net surplus revenue and the annual proceeds of the reserve fund of the electricity undertaking of the Corporation otherwise than in accordance with the provisions

Application
of revenue
&c. of
electricity
under-
taking.

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A.D. 1928. — of section 43. of and the Fifth Schedule to the Electricity (Supply) Act 1926.

Rate of accumulation of annual payments to sinking fund for repayment of loans.

62. Notwithstanding anything contained in the Acts Orders or regulations governing the same the rate of accumulation of the annual payments to every accumulating sinking fund which has been formed by the Corporation for any purpose shall be three pounds ten shillings per centum per annum or such other rate as the Minister of Health may from time to time approve.

All stock and loans to rank equally.

63. Until a scheme under the section of this Act of which the marginal note is "Consolidated loans fund" shall be put into operation subject to any priority existing at the passing of this Act all stock of and loans to the Corporation and the dividends and interest thereon shall be charged indifferently on all the revenues of the Corporation and shall rank equally one with the other without any priority whatsoever.

Expenses of execution of Act.

64. Any expenses of the execution by the Corporation of this Act with respect to which no other provision is made shall be defrayed by the Corporation out of the general rate fund and the general rate.

Period for repayment of loans under Municipal Corporations Act 1882.

65. Notwithstanding anything contained in the Municipal Corporations Act 1882 any money borrowed or to be borrowed by the Corporation in pursuance of that Act shall be repaid within such period not exceeding sixty years as the Minister of Health shall in each case prescribe.

MISCELLANEOUS PROVISIONS.

Subscriptions to local government associations and other expenses.

66. The Corporation may pay out of the general rate fund as expenses incurred by them under the Municipal Corporations Act 1882—

- (a) reasonable subscriptions whether annually or otherwise to the funds of, any association of municipal corporations or other local authorities or their officers formed for the purpose of consultation as to their common interests and the discussion of matters relating to local government and any reasonable expenses of the attendance of any members or officers of the Corporation not exceeding in any case four at

conferences or meetings of such associations or any of them and the cost of purchasing reports and contributing towards the expenses of the proceedings of any such conferences or meetings; A.D. 1928.
—

- (b) the reasonable expenses of the Corporation in providing public entertainments on the occasion of or otherwise in connection with any public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting the city.

67.—(1) The Corporation may from time to time appoint and pay one or more members of the Institute of Chartered Accountants or of the Society of Incorporated Accountants and Auditors to act as auditor or auditors of the accounts of the Corporation in such manner as the Corporation direct in lieu of the auditors appointed under the Municipal Corporations Acts Any auditor or auditors appointed by the Corporation under the provisions of this section and for the time being holding office is or are in this section referred to as “the appointed auditor.” Appointed auditors.

(2) If and while the Corporation exercise the powers of subsection (1) of this section section 25 (Borough auditors) of the Municipal Corporations Act 1882 shall not apply within the city.

(3) Every appointment of an auditor or auditors under this section shall be in writing under the seal of the Corporation and may be for such term and subject to such conditions as the Corporation may think fit.

(4) Subsection (1) of section 27 of the Municipal Corporations Act 1882 shall apply and have effect as if the appointed auditor had been referred to therein instead of the borough auditor and in addition the appointed auditor shall be entitled to require from any officer of the Corporation all such papers books accounts vouchers sanctions for loans information and explanations as may be necessary for the performance of his duties.

(5) The appointed auditor shall include in or append to any certificate given by him with reference to the accounts of the Corporation such observations and recommendations (if any) as he may deem necessary or expedient with respect to the accounts and any matter arising thereout or in connection therewith.

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A.D. 1928.

Power to
take market
and fair
tolls.

68. The Corporation may demand and take in respect of markets and fairs at their cattle market as existing at the passing of this Act or as from time to time enlarged by them tolls and charges not exceeding those specified in the schedule to this Act or such other tolls as may from time to time be fixed in manner provided by section 167 of the Public Health Act 1875 in respect of the live stock and things therein described in lieu of the tolls and charges authorised to be taken by them in respect thereof by section 25 (Power to take market and fair tolls) of the Act of 1874.

Discounts
on water
rents &c.

69.—(1) The Corporation may from time to time if they think fit make an allowance by way of discount not exceeding five per centum on the amount due in respect of any water rent rate or charge or any instalment thereof from every person who pays the same within such time after demand of the rate or any instalment thereof as the case may be as the Corporation may prescribe.

(2) Provided that the same rate of discount shall be allowed in similar circumstances to every person from whom such water rent rate or charge or any instalment thereof shall be demanded.

(3) Notice of this enactment shall be endorsed on every demand note where a water rent rate or charge is collected with the general rate and an allowance by way of discount is made under subsection (1) of this section.

Consent of
Corporation
to be in
writing.

70.—(1) All consents given by the Corporation under the provisions of this Act or of any local Act Provisional Order byelaw or regulation for the time being in force within the city shall be given in writing and unless otherwise prescribed shall be given under the hand of the town clerk or other duly authorised officer of the Corporation.

(2) Section 128 (Consent of Corporation to be in writing) of the Act of 1911 is hereby repealed.

Summons
or warrant
may con-
tain several
sums.

71. Where the payment of more than one sum by any person is due under any Act or Order for the time being in force in the city any summons or warrant issued for the purposes of such Act or Order in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

72. Where any damages expenses costs or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses costs or charges in case of dispute respecting the same may be settled or determined by a court of summary jurisdiction before whom any offender is convicted.

A.D. 1928.
 —
 Damages and charges to be settled by justices.

73. The following further sections of the Act of 1911 shall with any necessary modifications extend and apply to the exercise of the powers of this Act or any other local Act of the Corporation as if the same were re-enacted therein :—

Application of further provisions of Act of 1911.

- Section 131 (Recovery of penalties &c.);
- Section 132 (Recovery of demands);
- Section 135 (Informations &c. by whom to be laid);
- Section 137 (Judges not disqualified);
- Section 138 (Application of section 265 of Public Health Act 1875);
- Section 139 (Saving for indictments &c.).

74. In respect of the exercise of any powers or duties conferred on the Minister of Transport or the giving by him of any consents under this Act or any existing Act or Order of the Corporation the provisions of Part I of the Board of Trade Arbitrations &c. Act 1874 shall apply as if the Minister of Transport were referred to therein in lieu of the Board of Trade and as if in section 4 of that Act the words “under the seal of the Minister of Transport” were substituted for the words “by writing under the hand of the President or of one of the secretaries of the Board.”

Inquiries by Minister of Transport.

75. Where the Minister of Transport causes any inquiry to be held under the provisions of this Act all expenses incurred by the Minister in relation to that inquiry shall be paid as the Minister may by order direct either by the Corporation or by any of the parties on whose representation the inquiry is held or partly by the Corporation and partly by any of such parties and the Minister may certify the amount of the expenses incurred and any sum so certified and directed by the Minister to be paid shall be a debt due to the Crown.

Expenses of inquiry by Minister of Transport.

A.D. 1928.

—
Inquiries by
Minister of
Health.

76.—(1) The Minister of Health may direct any inquiries to be held by his inspectors which he may deem necessary in regard to the exercise of any powers conferred upon him or the giving of any consents under this Act and the inspectors of the Minister of Health shall for the purposes of any such inquiry have all such powers as they may have for the purposes of inquiries directed by that Minister under the Public Health Act 1875.

(2) The Corporation shall pay to the Minister of Health any expenses incurred by that Minister in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Minister not exceeding five guineas a day for the services of such inspector.

Costs of Act.

77. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund and general rate or out of moneys to be borrowed under this Act for that purpose.

The SCHEDULE referred to in the
foregoing Act.

A.D. 1928.

TOLLS AND CHARGES AT THE CATTLE MARKET.

LIVE STOCK.

	<i>s.</i>	<i>d.</i>
Stallions each - - - - -	2	6
Horse mare or gelding each - - - - -	1	0
Colts each - - - - -	0	6
Bulls each - - - - -	1	0
Steers cows heifers or other such cattle each - - - - -	0	6
Mule or ass each - - - - -	0	3
Every calf - - - - -	0	3
Lambs sheep and pigs per head - - - - -	0	1
Lambs and sheep for the pen per score - - - - -	1	0
Ditto for the pen per half score - - - - -	0	6
For the use of every pen for swine or hogs - - - - -	1	0

CHEESE AND WOOL.

Cheese brought into the market per ton per diem - - -	2	0
And for any less quantity per cwt. per diem - - -	0	1½
Wool brought into the market per pack per diem - - -	2	6

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